

24TRCV03929 24TRCV03929

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Case Number: 24TRCV03929 Hearing Date: September 10, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

JULIAN

L. SILVA, JR.,

Plaintiff,

Case No.:

24TRCV03929

vs.

[Tentative]

RULING

RUSSELL

ALLEN ROTHENBERG, et al.,

Defendants.

Hearing

Date: September
10, 2026

Moving Parties: Defendant and
cross-defendant Jose Luis Tlaxcalteca Perez

Responding Party: Plaintiff Julian L. Silva, Jr.,
defendant Matthew Dane Martinez, and Anthony Cortes

Motion
for Summary Judgment

The Court considered the moving, opposition, and reply papers.

RULING

The motion for summary judgment is DENIED.

BACKGROUND

On November
20, 2024, plaintiff Julian L. Silva, Jr. filed a complaint against Russell
Allen Rothenberg, Teresa Marie Trebotic, Anthony Cortes, Matthew Dane Martinez,
Jose Luis Tlaxcalteca Perez, Manuels Towing, and Felix Jose Manuel for motor
vehicle negligence and negligence based on a multi-vehicle motor vehicle
accident on October 30, 2024.

On
January 8, 2025, Teresa Marie Trebotic filed a cross-complaint against Russell
Allen Rothenberg, Anthony Cortes, Matthew Dane Martinez, Jose Luis Tlaxcalteca
Perez, and Douglas Pompilo Gonzalez for apportionment of fault,
indemnification, declaratory relief.

On
March 17, 2025, Russell Allen Rothenberg filed a cross-complaint against
Matthew Dane Martinez, Jose Luis Tlaxcalteca Perez, Manuels Towing, and Felix

Jose Manuel for equitable indemnity, contribution, and declaratory relief.

On

June 12, 2025, pursuant to plaintiff's request, Manuels Towing was dismissed.

On

July 8, 2025, the case was deemed related to 25TRCV00530 (Perez v. Rothenberg, et al.). In the related case, Perez named Rothenberg, Trebotic, Cortes, Mathew Dane Martinez, Douglas Pompilio Gonzalez, and Airborne Freight Lines, Inc.

On

August 8, 2025, Matthew Dane Martinez filed a complaint against Anthony Cortes, Douglas Pompilio Gonzalez, Felix Jose Manuel, Jose Luis Tlaxcalteca Perez, Manuels Towing, Russell Allen Rothenberg, and Teresa Marie Trebotic for implied indemnity, total indemnity, declaratory relief, and apportionment of fault.

On

September 23, 2025, Anthony Cortes filed a cross-complaint against Matthew Dane Martinez for implied indemnity, declaratory relief, and apportionment of fault.

On

January 16, 2026, Antony Cortes filed a cross-complaint against Manuel's Towing and Jose Luis Tlaxcalteca Perez for negligence.

On

January 26, 2026, the Court denied Rothenberg's application for good faith settlement and granted Perez and Trebotic's motions to contest.

On May

6, 2026, Anthony Cortes filed a FACC.

On July

21, 2026, the Court granted Rothenberg's application for good faith settlement.

Trial

is scheduled for March 22, 2027.

FACTS

On October 30, 2024, several vehicles were involved in a series of accidents, which were recorded by the rear dashcam of a passing motorist. Defendant's Undisputed Material Facts ("DUMF") 3. The dashcam footage and undisputed facts show that Rothenberg, driving the red Porsche, changed lanes behind Trebotic and collided into the rear of her BMW. Trebotic's BMW collided into Cortes' Nissan Altima. Martinez, who was driving a red Toyota Corolla behind Rothenberg at the time Rothenberg collided into Trebotic the first time, swerved into the HOV lane and collided into the side of the tow truck driven by Perez, before swerving back and colliding with Rothenberg's Porsche, which hit Trebotic's BMW for the second time, which hit Cortes' Altima for the second time. Meanwhile, the tow truck being driven by Perez, which carried passenger Silva and Silva's vehicle on the flatbed, after being hit by Martinez's Corolla lost control in such a manner that the front of the truck hit Cortes' Altima in the lane to the right, while the rear of the truck hit the center divider to the left, resulting in the tow truck turning driver-side down as it crossed several lanes of traffic.

LEGAL

AUTHORITY

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal. 4th 826, 843. "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." *Adler v. Manor Healthcare Corp.* (1992) 7 Cal. App. 4th 1110, 1119.

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal. App. 4th 1510, 1519. A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a

cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2).

"To meet its burden of proof, a 'plaintiff must introduce evidence which affords a reasonable basis for the conclusion that it is more likely than not that the conduct of the defendant was a cause in fact of the result. A mere possibility of such causation is not enough; and when the matter remains one of pure speculation or conjecture, or the probabilities are at best evenly balanced, it becomes the duty of the court to direct a verdict for the defendant.'"

Peralta v. The Vons Companies, Inc. (2018) 24 Cal. App. 5th 1030, 1035 (citation omitted).

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." *Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal. App. 4th 463, 467; CCP §437c(c).

OBJECTIONS

Plaintiff's Silva's objections are ruled on as follows:
OVERRULED as to Nos. 1 and 2.

Cross-complainant Cortes' objections are ruled on as follows:
OVERRULED as to Nos. 1, 3, 4, and 6; SUSTAINED as to Nos. 2. Objection No. 5 is SUSTAINED as to UMF 14, and OVERRULED as to UMF 12. Objection No. 7 is not specific enough to be ruled upon.

Perez's objections to plaintiff's evidence are ruled on as follows:

SUSTAINED as to Nos. 1 and 3; OVERRULED as to No. 2.

Perez's objections to

Martinez's evidence are ruled on as follows:

OVERRULED as to No. 1, SUSTAINED as to No. 2.

Perez's objections to Cortes' evidence are ruled on

as follows: OVERRULED as to Nos. 1, 2, 7,

8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19 and SUSTAINED as to Nos. 3, 4, 5, and 6.

DISCUSSION

The complaint asserts causes of action for motor

vehicle negligence and negligence and alleges that Perez caused the subject accident by violating Vehicle Code §22350 (unsafe speed for conditions), §21703

(tailgating), §22109 (sudden decrease in speed without giving appropriate

warning to driver immediately to the rear), §21655.5 (unauthorized use of HOV

lane), and §22406 (exceeding 55 miles per hour). In the cross-complaint, Cortes asserts causes

of action for negligence and negligence per se and alleges that Perez caused

the subject accident by driving the tow truck in the HOV lane at an unsafe

speed for the conditions in violation of Vehicle Code §22350.

Defendant and

cross-defendant Jose Luis Tlaxcalteca Perez ("Perez") requests summary judgment

in his favor and against plaintiff Julian L. Silva, Jr. and all

cross-complainants, including Anthony Cortes, on the grounds that there is no

triable issue of material fact and as a matter of law, he prevails. Perez argues that he did not breach any duty

owed to plaintiff or Cortes and did not, as a matter of law, proximately cause

the accident at issue and thus is not liable for either plaintiff's or Cortes'

alleged injuries.

Breach

Defendant Perez argues

that he did not breach any legal duty, including a duty to use "ordinary care and diligence." Defendant cites to plaintiff's

testimony that at no time while plaintiff was in the vehicle with Perez was

Perez driving unsafely. Defendant

asserts that plaintiff admitted in his deposition that he did not look at the

speedometer while he was a passenger in Perez's tow truck and thus there is no evidence that Perez was speeding.

Defendant points to plaintiff's testimony where he stated that he never told Perez to slow down or that he felt uncomfortable with Perez's driving or that he felt that Perez was performing dangerous maneuvers. Defendant notes that the dashcam video showed that it was not raining at the time of the incident, it was not dark, and there was no traffic in front of Perez at the time of the accident.

Defendant Perez also

argues that Evidence Code §669(a) does not apply to him. Defendant states that as to Vehicle Code §21703 (tailgating), there is no evidence that there was any vehicle in front of him at the time of the accident. As for Vehicle Code §22019, defendant asserts that there is no evidence that Perez suddenly stopped or decreased his speed.

As for Vehicle Code §21655.5 (HOV lane), defendant argues that the section does not encompass "tow trucks" and that neither of plaintiff's nor Cortes' injuries resulted from an occurrence of the nature which the section was designed to prevent.

In opposition, defendant

Matthew Dane Martinez argues that defendant Perez does not conclusively negate breach. Rather, defendant asserts, the motion offers one interpretation of a disputed freeway collision sequence and asks the Court to treat that interpretation as the only reasonable one. Defendant argues that the record leaves room for competing inferences concerning Perez' speed, lane choice, manner of operation, and whether he exercised reasonable care under the freeway conditions.

In opposition, defendant

and cross-complainant Anthony Cortes argues that Perez does not meet his burden because he does not address Vehicle Code §22350 (unsafe speed for the conditions). Cortes argues that operating a loaded commercial flatbed tow truck at sixty-five miles per hour in the far-left lane, past a lane of traffic coming to a complete stop, was a speed greater than was reasonable or prudent having due regard for the traffic on the highway and one that endangered the safety of persons or property. Cortes contends that the motion also fails based on Perez's own evidence—plaintiff's deposition testimony. Cortes notes that at his deposition plaintiff was asked, "Was he speeding in any way? All the way up to the moment of the incident?" and he responded, "He was going 65." When asked, "How do you know

he was going 65?” plaintiff stated, “Because we were zooming past cars.” Cortes notes further that plaintiff testified that he and Perez saw the collision and acknowledged it to each other and that “we didn’t slow down. We were trying to get past that accident.”

In opposition, plaintiff contends the dispositive question is whether Perez’s conduct before that contact was negligent, and whether it contributed to the contact, loss of control, rollover path, secondary impacts, or severity of the harm. Plaintiff argues that California’s substantial-factor standard permits multiple concurrent causes and that the existence of another negligent motorist does not “erase antecedent negligence by the operator of the loaded tow truck.”

Plaintiff asserts that Perez’s motion “isolates the last physical event”—the Toyota’s side contact with the tow truck—but does not establish that Perez exercised reasonable care before contact, including that Perez’s antecedent speed, lookout, space management, lane position, and response were reasonable and that no act or omission by Perez was a substantial factor in the contact, rollover, secondary impacts, or resulting harm.

Plaintiff further argues that “passenger silence, a clear lane ahead, and earlier signaling” do not establish due care. Plaintiff contends that the tow truck continued passing slowing traffic without a controlled reduction after the adjacent collision became apparent and that a jury could reasonably find that a loaded, high-center-of gravity tow truck should have decelerated and enlarged its safety cushion before the emergency reached the vehicle. Plaintiff presents the declaration of expert V. Paul Herbert, C.P.S.A., who opines that operating the loaded tow truck in the HOV lane was inconsistent with accepted commercial fleet and defensive driving practices and materially increased the risk that a vehicle entering from the right would cause loss of control and rollover. Herbert decl., ¶31.

Causation

Defendant Perez states in his declaration that at the time of the subject accident, he did not lose control of the tow truck he was driving until he was hit on the right side of the tow truck. He states that the collision caused the tow truck to lose control and overturn. He argues that negligent acts of Rothenberg and Martinez were intervening/superseding causes of the subject accident, citing to CACI No. 432. He reiterates that while Perez was driving, without incident, out of nowhere, Rothenberg

collided into Trebotic's BMW, and Martinez made the unsafe turn into the HOV lane to avoid a collision into the rear of Rothenberg's vehicle. Perez points to the dashcam video, asserting that "this all occurred in the one-to-two second time frame before Martinez collided into the side of Perez's tow truck causing it to lose control."

In opposition, defendant

Martinez argues that Perez fails to negate causation as a matter of law. Martinez contends that the "same facts" can support a different conclusion—that multiple acts combined in a rapidly developing freeway event and that Perez's conduct remained a substantial factor in exposing plaintiff, his passenger, to the resulting harm. Martinez argues that even if the tow truck was struck on its passenger side before overturning, a reasonable trier of fact could conclude that Perez' operation of the vehicle remained part of the causal sequence, even if other drivers were also negligent. Martinez also contends that cause cannot be resolved as a matter of law on this record and that reasonable minds could differ on whether the conduct of the other drivers was foreseeable under the circumstances and whether Perez' own conduct remained part of the casual chain.

In opposition, plaintiff

argues that causation is not an "all-or-nothing choice" between Perez and Martinez. Plaintiff's expert Herbert states that the Toyota's movement into the HOV was the immediate physical contact that preceded the tow truck's loss of control but that "does not answer whether Mr. Perez's pre-contact speed position, observation, and response contributed to whether the conflict occurred or to the severity of the resulting loss of control." Herbert decl., ¶44. Plaintiff argues that earlier controlled deceleration would have increased time and separation, reduced the need for abrupt steering, and reduced the energy of any contact and rollover. Herbert opines that within the field of commercial fleet safety, Perez's departures from accepted professional driving standards were substantial contributing factors in the collision sequence, the rollover, and the resulting harm to Silva. He states that the negligent acts of other motorists do not eliminate those contributing professional-driver failures. Id., ¶48.

The Court rules as

follows: Under Civil Code §1714, "(a) Everyone is responsible, not only for the result of his or her willful acts, but also for an injury occasioned to another by his or her want of ordinary care or skill in the management of his or her property or person, except so far as the

latter has, willfully or by want of ordinary care, brought the injury upon himself or herself. . . .” “A defendant’s negligent conduct may combine with another factor to cause harm; if a defendant’s negligence was a substantial factor in causing the plaintiff’s harm, then the defendant is responsible for the harm; a defendant cannot avoid responsibility just because some other person, condition, or event was also a substantial factor in causing the plaintiff’s harm; but conduct is not a substantial factor in causing harm if the same harm would have occurred without that conduct.” Yanez v. Plummer (2013) 221 Cal. App. 4th 180, 187 (citations omitted).

The Court finds that defendant Perez has not met his burden establishing that plaintiff or the cross-complainants cannot meet the elements for negligence and negligence per se. Defendant did not address Vehicle Code §22350, and the evidence with respect to causation is subject to more than one reasonable interpretation, making judgment as a matter of law inappropriate. In any event, plaintiff and defendant Cortes present substantial evidence to raise triable issues of material fact as to breach and causation, including whether defendant’s conduct was a substantial factor in causing harm to plaintiff. There are also triable issues of material fact to what extent negligent acts of Rothenberg and Martinez were intervening/superseding causes of the accident.

The motion for summary judgment is DENIED.

ORDER

The motion for summary judgment is DENIED.

Plaintiff is ordered to give notice of ruling.